

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JULY 21, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, July 21, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, July 20, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

PLEASE NOTE SPECIAL DATE: Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0092787 Alexander, Zhelezoglo v. Nelson, Forest

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Reconsideration

Defendant Forest Nelson moves for reconsideration of the court's February 17, 2026 ruling on submitted matter pursuant to Code of Civil Procedure section 1008 and the court's inherent authority. Plaintiff opposes the motion.

A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have

discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.)

Here, defendant points to a motion for summary adjudication granted in related matter S-CV-0055104 on January 22, 2026 and the evidence in support and in opposition thereof as new evidence this court did not consider for the January 20, 2026 motion hearing and its February 17, 2026 ruling. Defendant also submits documents from other related cases as exhibits A through D. While the court order granting the motion for summary adjudication in S-CV-0055104 occurred after the hearing, all of the evidence filed in support and in opposition thereof had been filed months before (on October 29, 2025 and on January 2, 2026). Defendant has not shown he could not with reasonable diligence have discovered or produced this information prior to the January 20, 2026 motion hearing. Accordingly, defendant falls short of his obligation of showing new or different facts, circumstances, or law.

Defendant also asks this court to exercise its inherent authority to reconsider its prior decision. However, defendant presents insufficient grounds to justify such an action.

Based on the foregoing, the motion for reconsideration is denied.

2. S-CV-0046361 Fialho Family Trust v. The Willis K Polite Jr. Trust

This tentative ruling is issued by the **Honorable Charles D. Wachob**. If oral argument is timely requested, it will be heard on **July 23, 2026 at 8:30 a.m. in Department 2**. Department 2 is located at 101 Maple Street, Auburn, California 95603.

Moving parties are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Correct Judgment

Defendant and cross-complainant moves to correct the judgment pursuant to Code of Civil Procedure 473(d), arguing it contains two clerical errors. Specifically, defendant argues the judgment (1) fails to expressly dissolve the preliminary injunction and (2) incorrectly names the successor trustee as “Naomi Polite” rather than “Mark Polite.” Plaintiffs and cross-defendants oppose the motion.

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed[.] . . .” (Code Civ. Proc., § 473, subd. (d).) “A clerical error results when the order or judgment misstates the court’s actual intent (i.e., error in recording the judgment rendered), and judicial error results when the order or judgment entered was intended, even though based on an error of law (i.e., error in rendering the judgment). [Citation.]” (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 346, citation omitted.) “A judicial error is the deliberate result of judicial reasoning and determination.” [Citation.]” (*Estate of Douglas* (2022) 83 Cal.App.5th 690, 695, citation omitted.) “Any attempt by a

court, under the guise of correcting clerical error, to ‘revise its deliberately exercised judicial discretion’ is not permitted. [Citation.]” (*In re Candelario* (1970) 3 Cal.3d 702, 703, citation omitted.)

Defendant’s first contention, that the judgment’s failure to specify that the preliminary injunction is dissolved is a clerical error, lacks merit. A preliminary injunction is dissolved by operation of law upon entry of judgment, *City of Oakland v. Super. Court* (1982) 136 Cal.App.3d 565, 569, which defendant acknowledges in his moving papers. The court’s decision to not expressly state what must necessarily happen under the law was not a clerical error but a choice to promote conciseness. As this is not a clerical error, Section 473(d) relief is not appropriate.

Defendant’s second contention, that the judgment erroneously specifies “Naomi Polite” as the successor trustee of the Willis K. Polite Jr. Trust rather than “Mark Polite,” also lacks merit. Defendant presents the Second Amendment to the Willis K. Polite Jr. Trust as Exhibit 4 to the Lee declaration, which appears to show the successor trustee is “Mark Polite.” Defendant did not provide this evidence to the court during the trial. The court did receive evidence, however, that “Naomi Polite” is defendant’s spouse and therefore concluded she was the successor trustee. The court’s decision was based on the evidence presented to it and was not a clerical error but a judicial determination. Again, Section 473(d) relief is not appropriate.

Based on the foregoing, defendant’s motion is denied in its entirety.

Motion for Attorneys’ Fees

Plaintiffs/cross-defendants Fialho move for an award of attorneys’ fees in the amount of \$3,399,561.54 pursuant to California Civil Code Section 1717 and the 1980 Agreement. Defendant Polite objects. Plaintiffs seek a total of \$3,399,561.54 as reasonable attorney fees. This amount is what can result when well-heeled parties lawyer up and then exhaustively litigate their positions over a 5-year period, with no settlement along the way.

The parties acknowledge that the primary issue in this case was ownership of the pier into Lake Tahoe. As defendant acknowledges in his closing brief “[t]his case boils down to a single issue: ownership of the multiple-use pier.” The agreement entered into in 1980 by the respective predecessor property owners (“the 1980 Agreement”) contains an attorney fee provision as follows:

“In the event that either party shall commence an action against the other for, but not limited to, damages, breach of this agreement, declaratory relief, or any other action legal or equitable, then, and in that event, the prevailing party in such action or proceeding shall be entitled to reasonable attorney’s fees to be fixed by the court or tribunal.”

This litigation ensued as a result of Polite wrongfully commencing construction on the pier based on his ill-founded claim that he held joint ownership of the pier extending

from the neighboring Fialho property into Lake Tahoe. This led to the Fialhos first having to obtain a preliminary injunction against Polite, and then to the years of exhaustive discovery and litigation that followed. The Fialhos' claims for quiet title, declaratory relief, breach of contract, and trespass, and Polite's crossclaims for quiet title, declaratory relief, breach of contract, trespass to chattel, and nuisance, all arose out of and relate to the pier, the 1980 Agreement, and the 1985 Amendment to the 1980 Agreement. The Fialhos prevailed on their first cause of action for quiet title with the court finding that Polite has "no right, title, estate, lien, real property interest, personal property interest or claim in or to the Fialho Property," excepting for his undisputed personal property interest in a boat hoist located on the pier. On the Fialhos' second cause of action for declaratory relief, the Court declared that Polite's interest in the Fialho Property "is limited to only those rights expressly stated in the 1980 Agreement and the 1985 Amendment" and that the easement for access is "limited strictly to the stairs and stairway in Section 4 of the 1980 Agreement."

California Civil Code § 1717(a) provides that in any action on a contract where the contract specifically provides that attorney's fees and costs incurred to enforce that contract shall be awarded to the prevailing party, the party determined to be the party prevailing on the contract shall be entitled to reasonable attorney's fees in addition to other costs. (Civ. Code, § 1717.) Under § 1717(b)(1), the party prevailing on the contract is the party who recovered a greater relief in the action on the contract, and the court may also determine that there is no party prevailing on the contract. (Civ. Code, § 1717.) After five years of litigation, the Fialhos are clearly the prevailing parties under California Civil Code Section 1717. They prevailed on the central dispute in the litigation and defeated every crossclaim asserted by Polite. There is no dispute that the Fialhos were granted far greater relief than Polite and are thus entitled to recover their attorneys' fees under the 1980 Agreement.

The only question is whether the amount of fees claimed by Fialho should be reduced for any reason. Applying the lodestar method, subject to the two offsets noted below, the court finds the number of hours claimed by the Fialhos is reasonable under the circumstances of this lengthy and hard-fought litigation, which included substantial motion practice, lengthy discovery and preparation for multiple trial dates. The court has considered the reasonableness of hourly rates claimed by plaintiffs' attorneys, including the nature and difficulty of the litigation, the skill required of the attorneys, and the success of the attorneys in handling the case through trial. This case involved significant issues of real property law, a lengthy historical background to the dispute, easement and access disputes, quiet title litigation, as well as an underpinning of Lake Tahoe regulatory matters—including TRPA and State Lands Commission regulations. Plaintiffs' attorneys prosecuted the complaint, and defended against the Polite cross-complaint, at a high level. Under all of the circumstances, the court finds the following hourly rates to be reasonable: \$585 for Mr. Lemieux; \$380 for Ms. Crow; and \$340 for Ms. Yates; and \$325 for Mr. Gonden. However, it was not necessary for plaintiffs to have four lawyers present at all times for a 6-day bench trial. The trial was over-lawyered by plaintiffs. The court will deduct trial charges for Mr. Gonden, whose participation during presentation of the evidence was limited. Likewise, the court will deduct trial charges for

Ms. Yates. It appears to the court that Ms. Yates' participation at trial was primarily for the purpose of gaining trial experience through the examination of one witness. The brief examinations of witnesses by Mr. Gonden and Ms. Yates could easily have been handled by plaintiff's two primary trial lawyers, Mr. Lemieux and Ms. Crow. Accordingly, the court will deduct the trial charges attributable to Ms. Yates in the amount of \$39,406 and for Mr. Gonden in the amount of \$15,697.50. Two lawyers for plaintiff at trial was entirely sufficient.

Defendant Polite asserts he should be regarded as the prevailing party because he successfully defended against plaintiffs' attempt to have the 1980 Agreement invalidated. Plaintiffs' third cause of action alleged Polite breached the 1980 Agreement and 1985 Amendment in several ways: by claiming an ownership interest in the pier; by entering and traversing on 1620 beyond what is permitted by the access easement and by performing construction; by claiming the 1980 Agreement provides an easement to access the structure or "pier" on Polite property; and by constructing a new pier on the Polite property. The Fialhos contended the 1980 Agreement should be voided because Polite constructed a pier from 1600 in violation of Section 12. Section 12 provides: "12. Construction of Pier by Grantee: In the event that GRANTEE, his heirs, successors or assigns, should at some date in the future, construct a pier from GRANTEE'S land into Lake Tahoe, then, and in that event, this grant and agreement shall upon completion thereof become null and void." From the evidence at trial, the court determined that the construction and use by Polite of the new structure or "pier" on 1600 did not trigger the breach contemplated by Section 12. Thus, defendant was partially successful in defending against the allegations of plaintiffs' third cause of action – the court did not find the 1980 Agreement should be voided because of the structure maintained and used by Polite.

Because Polite prevailed on that issue, the results can be regarded as mixed. When neither party achieves a complete victory on all contract claims, it is within the discretion of the trial court to determine which party prevailed on the contract or whether, on balance, neither party prevailed sufficiently to justify an award of prevailing-party attorney fees. Again, here, the central dispute in this litigation was who owns the pier. The court unqualifiedly found from the evidence that the Fialhos are sole owners of the pier. The issue of whether Polite breached the agreement by maintaining a structure was a secondary issue. The issue was certainly intertwined with the overarching issue of pier ownership. In determining how to apportion fees in light of Polite's limited success, the court finds it cannot be precisely discerned from the billing records how much attorney time is directly attributable to this secondary issue. However, from the court's review of the entire file and from the evidence presented at trial, the court's best overall assessment is that this issue accounted for approximately 10% of the litigation and time at trial. Accordingly, the court will reduce attorneys' fees claimed by plaintiffs by 10%.

Taking into account deductions for trial charges related to attorneys Gonden and Yates, and the apportionment above, plaintiffs are entitled to recover a total of \$3,010,012.24 in attorney fees from defendant/cross-complainant Polite.

Motion for Attorneys' Fees

Defendant and cross-complainant Polite moves for an award of attorneys' fees in the amount of \$2,191,190.90 pursuant to California Civil Code Section 1717 and the 1980 Agreement. Plaintiffs and cross-defendants Fialho object.

California Civil Code § 1717(a) provides that in any action on a contract where the contract specifically provides that attorney's fees and costs incurred to enforce that contract shall be awarded to the prevailing party, the party determined to be the party prevailing on the contract shall be entitled to reasonable attorney's fees in addition to other costs. (Civ. Code, § 1717.) Under § 1717(b)(1), the party prevailing on the contract is the party who recovered a greater relief in the action on the contract, and the court may also determine that there is no party prevailing on the contract. (Civ. Code, § 1717.) Here, the court finds plaintiffs are the prevailing party in this action for the reasons explained in the above ruling granting plaintiffs' motion for attorneys' fees. As defendant is not the prevailing party of this litigation, defendant's motion for attorneys' fees is denied in its entirety.

Motion to Strike Costs

Plaintiffs move to strike the entirety of defendant's claimed costs in the costs memorandum filed on February 25, 2026. Defendant opposes the motion.

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) The court finds plaintiffs are the prevailing party in this action for the reasons explained in the above ruling granting plaintiffs' motion for attorneys' fees. As defendant is not the prevailing party of this litigation and there is no other statutory basis presented to support an award of costs, plaintiffs' motion to strike costs is granted in its entirety.

Motion to Strike Costs

Defendant moves to strike plaintiffs' costs of \$141,959.80 in plaintiffs' costs memorandum filed on February 26, 2026. In the alternative, defendant seeks to tax costs amounting to \$49,926.30 of the claimed costs. Plaintiffs oppose the motion.

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) The court shall determine the "prevailing party" when the recovery is other than monetary relief and may allow costs or not. (Code Civ. Proc., § 1032, subd. (a)(4).) Code of Civil Procedure section 1033.5 specifies allowable costs and prohibited costs. (Code Civ. Proc., § 1033.5, subds. (a) [allowable costs], (b) [disallowed costs].) Costs neither allowed nor disallowed "may be allowed or denied in the court's discretion" provided they are "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code

Civ. Proc., § 1033.5, subds. (c)(4), (c)(2)–(3).) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. Cal. State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) “On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (*Id.* at pp. 774–76.) When the reasonableness of particular items is challenged, conclusory allegations do not satisfy the objecting party’s burden. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.)

The court finds plaintiffs are the prevailing party in this action for the reasons explained in the above ruling granting plaintiffs’ motion for attorneys’ fees. As the court is not swayed by defendant’s argument that plaintiffs’ costs should be stricken in their entirety because plaintiffs are not the prevailing party, the motion to strike costs in their entirety is denied. However, because the court did not find the 1980 Agreement void, defendant prevailed on this issue and should be entitled to an offset of costs. In determining how to apportion costs in light of Polite’s limited success, the court finds it cannot be precisely discerned from the costs memorandum the costs directly attributable to this secondary issue. However, from the court’s review of the entire file and from the evidence presented at trial, the court’s best overall assessment is that this issue accounted for approximately 10% of the litigation and time at trial and reduces costs claimed by plaintiffs by 10%.

The court now turns its attention to the challenged costs amounting to \$49,926.30.

Filing and motion fees (\$1,663.70)

Defendant challenges the \$1,663.70 in filing fees pertaining to plaintiffs’ application for admission *pro hac vice* of counsel Sara E. Yates, which the court granted on April 18, 2023. As filing and motion fees are allowable costs pursuant to Code of Civil Procedure section 1033.5(a)(1) and appear to be proper, the burden to show the costs are improper lies with defendant. Defendant falls short of his burden and these costs will not be taxed.

Witness fees (\$13,919.10)

Defendant acknowledges that ordinary witness fees are allowable costs pursuant to Code of Civil Procedure section 1033.5(a)(7), but nonetheless challenges the entirety of plaintiffs’ witness fees. Section 1033.5(a)(7) allows “Ordinary witness fees pursuant to Section 68093 of the Government Code,” which in turn permits daily rates of \$35 per day and mileage of \$0.20 per mile for actual mileage traveled when the witness’ attendance was legally required.

Attachment 8a to plaintiffs’ costs memorandum includes 48 itemized entries for witness fees. These line items include daily fees in the hundreds and sometimes thousands of dollars, lodging, parking costs, and mileage costs at rates of \$0.70 and \$0.75 per mile. Several of these entries are not sufficiently explained in Attachment 8a or elsewhere in the costs memorandum and plaintiffs’ opposition is unsupported by any evidence. It is

unclear which of these witnesses were legally required to attend the various proceedings and it is unclear what justifies such high daily rates. The court finds witness lodging is reasonably necessary to the prosecution of the case. (Code Civ. Proc., § 1033.5, subd. (c).) The court strikes daily fees in excess of \$35 and limits mileage to a rate of \$0.70 cents per mile, striking \$5,553.25 from witness costs.

Court ordered transcripts (\$17,913.50)

Defendant challenges court ordered transcripts as a disallowed cost under Code of Civil Procedure section 1033.5(b)(5). The court agrees and taxes costs in the amount of \$17,913.50.

Other (\$16,430)

Defendant challenges mediation expenses, “In-Court Litigation Consulting at Hearing on 5/1/23,” and “Strategic Multimedia Exhibit Presentation and Consulting and editing of deposition video clips for use during trial.” Engaging in alternate dispute resolution such as mediation is always an important endeavor, even if those efforts are unsuccessful. The court finds the mediation costs to be reasonably necessary to the litigation and denies the motion to tax as to these costs. While the two other categories are insufficiently explained in plaintiffs’ costs memorandum and attachments thereto, defendant has properly put these items at issue and the burden is on the plaintiffs to show the costs are reasonably necessary. While plaintiffs provide a reasonable explanation as to both “In-Court Litigation Consulting at Hearing on 5/1/23” and “Strategic Multimedia Exhibit Presentation and Consulting and editing of deposition video clips for use during trial,” that information is not supported by any evidence. Accordingly, the court taxes costs in the amount of \$8,980.

10% Offset

Finally, given defendant’s limited success on the issue of the 1980 agreement, a 10% reduction of recoverable costs is appropriate. For this reason, costs are taxed an additional \$10,951.30.

Based on the foregoing, the motion to tax costs is granted in part. Plaintiffs’ claimed costs are taxed in the total amount of \$43,398.05. The motion is otherwise denied, and plaintiffs may recover costs from defendant in the amount of \$98,561.75.

3. S-CV-0048923 Volkmar, Rodney v. Nortech Waste LLC

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval of Class Action Settlement

Plaintiff seeks preliminary approval of the parties' class action settlement. The motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended by two court days when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

The court also observes the class notice and the declaration of counsel Kevin Mahoney both refer to attorneys' fees in the amount of \$68,716.67. However, the court preliminarily approved attorneys' fees of \$67,050, which is one-third of the gross settlement amount and the amount included in the class action settlement agreement. (Mahoney Decl., Exh. A, sec. 4.2.2.) For clarity, the court does not intend to change its order for preliminary approval and when the court can reach the merits of the motion, the court intends to limit attorneys' fees to \$67,050.

The motion for final approval is continued to **August 18, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a notice of continued hearing on defendant and file a proof of service by August 4, 2026.

4. S-CV-0049242 David, Dennis v. Taylor Morrison of Cal.

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants' Demurrer to Complaint

Defendants demur to the second through fourth causes of action alleged in the complaint for breach of contract, breach of express warranty, and breach of the implied warranty of merchantability. Plaintiffs oppose this motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendants contend the second through fourth causes of action fail to state facts sufficient to constitute a cause of action and are uncertain pursuant to Code of Civil Procedure sections 430.10 (e) & (f). Defendants further contend the claims are duplicative of a claim under the Right to Repair Act and duplicative of each other. Defendants argue that section 896 is plaintiffs' exclusive method of remedy for construction defects, citing *McMillin Albany LLC v. Superior Court* (2015) 4 Cal.App.5th 241. The court notes *McMillin* recognized an express carve-out for breach of contract claims. (*Id.* at 256; Civ. Code § 943(a).)

It is otherwise noted that each of the subject causes of action alleges that plaintiffs "have been specifically damaged as herein above alleged in paragraph 18." (Compl., ¶¶ 19, 26, 33.) Paragraph 18, in turn, alleges: "The original purchaser Plaintiffs, and each of them, have performed all conditions, covenants, and promises required by the sales contracts in accordance with the terms and conditions of those contracts." (Compl., ¶ 18.) The reference to paragraph 18 appears erroneous, and renders each cause of action ambiguous. The breach of contract claim is also rendered ambiguous by the failure to attach the subject contract or set out the terms verbatim in the body of the complaint. (*Otworth v. Southern Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 459.)

Based on the foregoing the demurrer is sustained as to the second through fourth causes of action with leave to amend. Any amended complaint shall be filed and served on or before July 31, 2026.

5. S-CV-0053973 Holt of Cal. v. Viking Forebay Holdings

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One and Requests for Production of Documents, Set One, and Request for Sanctions

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff moves to compel further responses to special interrogatories, set one and requests for production of documents, set one, and requests sanctions.

Plaintiff served defendant John Taylor with special interrogatories, set one, nos. 1-153 on January 9, 2026. The special interrogatories were accompanied by a declaration in support of additional discovery under Code of Civil Procedure section 2030.050. (See Code Civ. Proc. § 2030.030(c).) Under Code of Civil Procedure section 2030.040(a):

... any party who attaches a supporting declaration as described in Section 2030.050 may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following:

- (1) The complexity or the quantity of the existing and potential issues in the particular case.
- (2) The financial burden on a party entailed in conducting the discovery by oral deposition.
- (3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought.

Under subdivision (b) of the statute, a responding party may seek a protective order on the ground that the number of specially prepared interrogatories is unwarranted, in which case the propounding party bears the burden of justifying the number of these interrogatories.

Defendant Taylor responded substantively to special interrogatories, nos. 1-35. He objected to the balance of the interrogatories on the grounds the declaration under Code of Civil Procedure section 2030.050 was legal deficient, and the special definitions made the interrogatories vague, ambiguous, and compound, and refused to otherwise respond. Following meet and confer discussions between counsel, plaintiff's counsel served an amended declaration under section 2030.050. (See Leding Decl., Exh. D; Fairbrook Decl., ¶ 9, Exh. 3.) Further attempts to meet and confer were unsuccessful and defendant declined to amend the responses. (Fairbrook Decl., ¶ 10, Exh. 4.) Taylor has separately moved for a protective order.

The court has reviewed the subject interrogatories, the declaration and amended declaration under Code of Civil Procedure section 2030.050, the meet and confer correspondence between counsel, and the arguments as set forth in the briefings. The court finds that in response to Taylor's objections under Code of Civil Procedure section 2030.040(b), plaintiff has met its burden of justifying the number of interrogatories. (See Leding Decl., Exh. D; Fairbrook Decl., ¶ 9, Exh. 3.) The motion to compel is granted as to special interrogatories, nos. 36-153.

Plaintiff served defendant Taylor with request for production of documents, set one, nos. 1-64, on January 9, 2026. Request nos. 13-64 seek documents as identified in corresponding special interrogatories which Taylor refused to answer. In response to each of these requests, Taylor's response is "[n]o documents have been identified in response to this request." In light of the court's ruling on the motion to compel further responses to special interrogatories, the motion to compel further responses to requests for production of documents is likewise granted.

Defendant Taylor shall serve further verified responses within 20 days of service of notice of entry of the court's order.

Plaintiff's request for monetary sanctions against John Taylor is granted in the amount of \$1,260. (Code Civ. Proc. § 2030.290(c).)

Defendant's Motion for Protective Order

Defendant John P. Taylor moves for a protective order, excusing him from responding to plaintiff's special interrogatories, set one, nos. 36-153, and request for production of documents, set one, nos. 13-64.

The court has reviewed the subject discovery, the declaration and amended declaration under Code of Civil Procedure section 2030.050, the meet and confer correspondence between counsel, and the arguments as set forth in the briefings. The court finds that in response to Taylor's objections under Code of Civil Procedure section 2030.040(b), plaintiff has met its burden of justifying the discovery requests.

Defendant's motion for a protective order is denied.

Plaintiff's request for sanctions is denied.

6. S-CV-0055032 Santos, Marcos v. Janiga, Matthew

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Defendants' Motion to Compel Responses to Interrogatories

Defendants' motion to compel responses to interrogatories is dropped from the calendar as no moving papers were filed with a noticed date of July 21, 2026. The court notes defendants' motion to compel further responses to special interrogatories, set one, and motion to compel further responses to request for production, set two, have been filed and are set to be heard on a later date.

Motion to Compel Inspection of Plaintiffs' Property

Defendants move to compel inspection of plaintiffs' property in its entirety, excluding the interior of any structures. Plaintiffs oppose the motion, excepting an inspection limited to the easement and gate areas in dispute.

On April 14, 2025, plaintiffs filed a complaint alleging: 1. physical invasion of privacy and intrusion on seclusion; 2. intrusion into private places or matter; 3. intentional infliction of emotional distress; 4. trespass; 5. private nuisance; 6. civil harassment; and 7. failure to maintain or repair easement. Plaintiffs allege, *inter alia*, defendants engaged in repeated drone flyovers which interfered with plaintiffs' use and enjoyment of their property and invaded their right to privacy. (Complaint, ¶¶ 9-12.) Plaintiffs further allege defendants physically trespassed on plaintiffs' property. (Id., ¶ 19; Laino Decl., Ex. B.) Plaintiffs allege defendants physically invaded .6 miles into the plaintiffs' property to observe plaintiffs' misuse of a creek. (Id., ¶ 21.) Plaintiffs allege defendants "fired guns near the border" of their property to "scare off [their] workers." (Id.) Plaintiffs bring tort claims for invasion of privacy, nuisance, civil harassment, trespass and intentional

infliction of emotional distress related to conduct on, or directly above, plaintiffs' property. (*Id.*, ¶¶ 29–63.) Lastly, plaintiffs allege defendants failed to maintain their easement across the plaintiffs' property by allowing heavy trucks to damage the paved driveway. (*Id.*, ¶¶ 24–28.)

On July 18, 2025, defendants filed a cross-complaint alleging nuisance and quiet title claims related to the driveway easement.

In opposition to the motion to compel, plaintiffs cite the California constitutional right to privacy. (Cal. Const., art. I, § 1.) A party asserting a privacy right under the California Constitution “must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 532 [citing *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35].) The requesting party “may raise in response whatever legitimate or important countervailing interests disclosure serves,” and the party seeking protection “may identify feasible alternatives.” (*Williams*, 3 Cal.5th at p. 532.) “A court must then balance these competing considerations.” (*Id.*) Even though plaintiffs contend that the inspection (without any entry into any structures on their property) is facially protected by the right to privacy, “[t]he right to privacy . . . is not absolute.” (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1199 [citing *Hill*, 7 Cal.4th at 37].)

In this case, the court has balanced plaintiffs' reasonable expectation of privacy with defendants' interests in discovery that is relevant and probative to the parties' claims and defenses. The court concludes that defendants have failed to demonstrate good cause for an inspection of the property in its entirety and less intrusive means of obtaining relevant information exist. (Code Civ. Proc. § 2031.310.(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The court notes that although the declaration of Elisabeth Janiga speaks to alleged shooting range activity on plaintiffs' property, she appears to be referring to activity occurring within the last several months. There is no indication from the evidence submitted in connection with this motion that the alleged firearm activity on plaintiffs' property predates the trespass or invasion of privacy alleged in the complaint. Defendants do establish good cause to permit inspection of the easement located on Chapparal Lane, as well as the gate referred to in the parties' pleadings. (M. Janiga Decl., ¶¶ 2-6.)

Based on the foregoing, the motion is granted in part as to the driveway easement and the gate thereon. The motion is otherwise denied. The parties' requests for sanctions are denied.

7. S-CV-0055243 Gross, Rickey Glenn v. Gervin, Donald Joseph

The demurrer to complaint and motion to strike portions of the complaint are dropped as moot in light of the first amended complaint filed July 7, 2026.

8. S-CV-0055662 Fallahi-Marzooni, Keyan v. Peers, Jessica

Defendant's motion for judgment on the pleadings is **continued to August 11, 2026, at 8:30 a.m. in Department 32**. The court notes inadequate meet and confer prior to filing the motion, which defendant concedes was due to an email from plaintiff that was not received by counsel. The parties are directed to meet and confer in good faith regarding the issues raised by defendant's motion, to determine whether any issues can be resolved voluntarily without court intervention. The parties shall each file a supplemental declaration of no more than three pages by no later than August 6, 2026, identifying whether any agreements have been reached.
